

BC534086 BC534086

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-08-20

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Case Number: BC534086 Hearing Date: August 20, 2026 Dept: 534

Background

On January 7, 2016, Judge Teresa

Sanchez-Gordon formally declared James Clark (aka James Lee Clark) a vexatious litigant in Superior Court of Los Angeles County case BC534086 Clark v. Flagstar Bank, et al. Under this order, Clark became subject to a Code of Civil Procedure section 391.7 prefiling requirement that requires Clark to obtain the permission of the presiding judge to file new litigation.

On October 3, 2025, Department 534 (formerly Department 1) received a Judicial Council form VL-110 Request to File New Litigation dated October 3, 2025 lodged by James Clark in propria persona. In Section 2 of Form VL-110, Clark indicated he sought to vacate the prefiling order and Clark included a pleading document entitled Notice of Motion and Motion to Vacate Prefiling Order and Remove Name from Vexatious Litigant List (CCP § 391.8).

On November 7, 2025, Department 534 issued an order denying Clark's request to vacate the prefiling order noting "[a]s set forth in Code of Civil Procedure section 391.8(b), James Clark may not file another application for this relief until at least 12 months after the date of this order."

On February 19, 2026, Department 534 received a new pleading document entitled Notice of Motion and Motion to Vacate Prefiling Order and Remove from Vexatious Litigant List (CCP § 391.8) lodged by Clark. On March 18, 2026, Department 534 issued an order denying the second request as premature.

On July 23, 2026, Clark filed the instant Motion to Vacate Vexatious Litigant Prefiling Order Pursuant to Code of Civil Procedure §§ 391.8(c) and 473(d) with the hearing set in Department 534.

Discussion

An application to vacate a prefiling order shall be made before the judge who entered the order if that judge is available; otherwise, the application shall be made before the presiding judge or his or her designee. (Code Civ. Proc. § 391.8(a).) Judge Sanchez-Gordon is unavailable. Therefore, Department 534 is the proper department to rule on Clark's motion as the designee of the presiding judge.

As noted above, the Court denied Clark's prior application pursuant to Code of Civil Procedure section 391.8(c) on November 7, 2025. Accordingly, the application remains premature and procedurally improper. (Code Civ. Proc. § 391.8(b) ("A vexatious litigant whose application under subdivision (a) was denied shall not be permitted to file another application on or before 12 months has elapsed after the date of the denial of the previous application.").)

The motion also cites Code of Civil Procedure section 473(d), which provides "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." However, Clark's motion fails to demonstrate a basis to find the prefiling order is void.

In the supporting letter brief, Clark contends he "never received notice of the motion that led to the 2016 vexatious litigant designation." (Ltr. Br. at 6:5-7.) However, the record in BC534086 demonstrates Clark filed oppositions on July 28, 2015 and January 6, 2016 to the motion to declare him a vexatious litigant. Thus, the order is not void for lack of notice or as being entered in violation of Clark's due process rights. In the motion, Clark refers to "judicial coercion, duress, and undue influence" as well as "extrinsic fraud," but fails to demonstrate any factual or legal basis supporting the conclusion that the prefiling order is void on this basis.

The motion is DENIED.

Conclusion

James Clark's Motion to Vacate Vexatious

Litigant Prefiling Order Pursuant to Code of Civil Procedure §§ 391.8(c) and
473(d) is DENIED.

Clerk shall give notice.